

that any Defendant, against whom a Subpœna to *appear* or to *appear* to and *answer* a bill has been issued, has been within the jurisdiction of the Court at some time not more than two years before the subpœna was issued, and that such Defendant is *beyond the seas*, or upon inquiry at his usual place of abode (*if he had any*), or at any other place or places where, at the time when the subpœna was issued, he might probably have been met with, he could not be found so as to be served with process, and that in either case there is just ground to believe that such Defendant is gone out of the realm, or otherwise absconded, to avoid being served with process, then and in such case the Court may order that such Defendant do appear at a certain day to be named in the Order; and a copy of such Order, together with a notice thereof to the effect set forth *at the foot of this Order*, may, within fourteen days after such Order made, be inserted in the *London Gazette*, and be otherwise published as the Court directs; and in case the Defendant does not appear within the time limited by such Order, or within such further time as the Court appoints, then, on proof made of such application as aforesaid of the aforesaid Order, the Court may order an appearance to be entered for the Defendant on the application of the Plaintiff.

The notice appended is in the words of that above given, at the foot of Order 24.

Under the English Order 31 of 1845, answering to the above Order 24, it has been decided, that it is not necessary to prove that the Defendant absconded to avoid process in that particular suit. (*Cope vs. Russell*, 2 Phillips, 404; 12 Jurist, 105.)